

NO. 25-CI-002964

JEFFERSON CIRCUIT COURT
DIVISION FOUR (4)
JUDGE JULIE KAELEN

Electronically Filed

CHARLES TINKER, INDIVIDUALLY
AND AS EXECUTOR OF THE ESTATE
OF THELMA TINKER, DECEASED, AND
DENISE HOUCK,
MONICA RUSSELL,
BRIAN TINKER, AND
CHERI KALILIKANI, EACH INDIVIDUALLY

PLAINTIFFS

v.

UofL HEALTH-LOUISVILLE, INC.
UNIVERSITY OF LOUISVILLE PHYSICIANS, INC.
ERICA GETTIS, D.O., AND
ROBERT ARIA, M.D.

DEFENDANTS

ANSWER OF DEFENDANT, ERICA GETTIS, D.O.

Comes the Defendant, Erica Gettis, D.O., by counsel, and for her Answer to
Plaintiffs' Complaint states as follows:

FIRST DEFENSE

1. Plaintiffs' Complaint fails to state a cause of action against this Defendant upon
which relief can be granted and, therefore, should be dismissed.

SECOND DEFENSE

2. Defendant affirmatively states that Plaintiffs' Complaint is barred, in whole or in
part, by the applicable statute of limitations, comparative fault, contributory negligence, the failure
to mitigate damages, and KRS 411.182.

THIRD DEFENSE

3. To the extent applicable and pursuant to Plaintiffs' allegations, Plaintiffs have failed to join indispensable parties needed for just adjudication pursuant to Kentucky Rule of Civil Procedure 19.

FOURTH DEFENSE

4. This Defendant is without sufficient knowledge and/or information at this time to either admit or deny the allegations contained in Paragraphs 1, 2, 3, 4, 5, 6, 7, 8, 9, 10, 13, 14, and 18 of Plaintiffs' Complaint and, therefore, denies same at this time. To the extent that the allegations contained in these paragraphs imply negligence on the part of this Defendant, those allegations are expressly denied.

5. In response to Paragraph 11 of Plaintiffs' Complaint, Defendant, Erica Gettis, D.O., admits that she is a physician licensed to practice medicine in the Commonwealth of Kentucky and that Thelma Marie Tinker established care as a new patient at ULP on October 14, 2021. However, this Defendant denies the remaining allegations contained in Paragraph 11 of Plaintiffs' Complaint.

6. In response to Paragraph 12 of Plaintiffs' Complaint, Defendant, Defendant, Erica Gettis, D.O., admits that she is an employee of University of Louisville Physicians, Inc.

7. Defendant expressly denies the allegations contained in Paragraphs 15, 16, 17, 24, 25, 26, 27, 28, 29, 30, 31, 32, 33, 34, 35, 36, 37, 38, 39, 40, 42, 43, 45, 46, 48, 49, 51, 52, 54, 55, 56, 57, and 58 (including all subparts) of Plaintiffs' Complaint to the extent that they apply to this Defendant.

8. With respect to Paragraph 19 of Plaintiffs' Complaint, Defendant states that no response is necessary as Paragraph 19 references an affidavit and certificate of merit signed by Plaintiffs' counsel, which was attached to Plaintiffs' Complaint.

9. With respect to Paragraph 20 of Plaintiffs' Complaint, Defendant, Erica Gettis, D.O. admits that Thelma Marie Tinker established care as a new patient at ULP on October 14, 2021. However, this Defendant denies the remaining allegations contained in Paragraph 20 of Plaintiffs' Complaint to the extent that they apply to this Defendant.

10. With respect to Paragraph 21 of Plaintiffs' Complaint, Defendant, Erica Gettis, D.O. admits that she ordered a PET CT skull base to mid-thigh for Thelma Marie Tinker on or around August 8, 2022. However, this Defendant denies the remaining allegations contained in Paragraph 21 of Plaintiffs' Complaint to the extent that they apply to this Defendant.

11. With respect to Paragraphs 22 and 23 of Plaintiffs' Complaint, Defendant, Erica Gettis, D.O. admits that the medical records for Thelma Marie Tinker state that Ms. Tinker underwent a PET CT skull base to mid-thigh on or around August 15, 2022. However, this Defendant denies the remaining allegations contained in Paragraphs 22 and 23 of Plaintiffs' Complaint to the extent that they apply to this Defendant.

12. With respect to Paragraphs 41, 44, 47, 50, 53 of Plaintiffs' Complaint, this Defendant restates and reaffirms all prior responses as if set forth fully herein.

13. Defendant affirmatively denies any and all allegations of negligence and impropriety on her part with respect to any care or treatment Defendant provided to Thelma Marie Tinker. To the extent that any allegation of wrongdoing by this Defendant in Plaintiffs' Complaint has not been specifically denied, that allegation is hereby denied.

14. Defendant expressly denies any allegations of negligence or gross negligence.

FIFTH DEFENSE

15. This Defendant provisionally asserts each and every affirmative defense set forth in Kentucky Rules of Civil Procedure 8.03, as if fully restated herein, as further discovery shall deem appropriate.

SIXTH DEFENSE

16. This Defendant affirmatively states and alleges that Plaintiffs' claims are barred, in whole or in part, by the due process provisions of the Kentucky Constitution and the United States Constitution and KRS 411.184, *et-seq.*

SEVENTH DEFENSE

17. To the extent applicable pursuant to Plaintiffs' allegations, Plaintiffs have named improper parties as Defendants in this action.

EIGHTH DEFENSE

18. To the extent applicable pursuant to Plaintiffs' allegations, this Defendant provisionally pleads lack of jurisdiction over the subject matter, lack of personal jurisdiction, lack of venue, lack of standing, and failure of service of process as affirmative defenses to the Plaintiffs' claims herein.

NINTH DEFENSE

19. Plaintiffs' damages and/or injuries, if any, may have been caused, either in whole or in part, by the acts and/or negligence of Plaintiffs. To the extent that Plaintiffs' acts caused or contributed to the alleged injuries and/or damages, Plaintiffs' claims are barred, either in whole or in part, as a result of contributory and/or comparative negligence.

TENTH DEFENSE

20. Plaintiffs' damages and/or injuries, if any, may have been caused, either in whole or in part, by the acts, omissions, and/or negligence of persons over whom this Defendant asserts no control. Such acts or omissions of other persons or entities act as superseding and/or intervening causes of Plaintiffs' alleged injuries and/or damages. As a result, Plaintiffs' claims against this Defendant are barred, either in whole or in part.

ELEVENTH DEFENSE

21. To the extent applicable pursuant to Plaintiffs' allegations, the damages of which Plaintiffs complain were caused by an underlying illness, disease process, or pre-existing condition for which this Defendant is not responsible and may not be held liable.

TWELFTH DEFENSE

22. This Defendant affirmatively denies any and all allegations of negligence, violation of statute, or other wrongdoing, and to the extent any allegation in Plaintiffs' Complaint has not been specifically addressed, that allegation is hereby denied.

THIRTEENTH DEFENSE

23. This Defendant denies any and all allegations of Plaintiffs' Complaint not specifically admitted herein and denies any and all claims of negligence, grossly negligent, reckless, willful and wanton, malicious and oppressive conduct, as well as any allegations of wrongdoing in their entirety.

FOURTEENTH DEFENSE

24. Defendant affirmatively states that this action is not one in which an award of punitive damages would be recoverable under Kentucky law. Each and every provision of KRS 411.184 and KRS 411.186 is asserted as affirmative defenses to any punitive damages claims herein. Further, any punitive damage awards would be unconstitutional under the Constitutions of the United States and the Commonwealth of Kentucky.

FIFTEENTH DEFENSE

25. Defendant reserves the right to assert additional defenses, affirmative or otherwise, about which she presently lacks sufficient knowledge or information, but which may become available during the course of this litigation.

WHEREFORE, having responded to Plaintiffs' Complaint, Defendant, Erica Gettis, D.O., respectfully demands as follows:

- A. That Plaintiffs' Complaint against her be dismissed with prejudice;
- B. For a Trial by Jury;
- C. For the recovery of her costs herein expended, including reasonable attorney's fees;
- D. For leave to file an Amended Pleading upon completion of discovery; and
- E. For any and all further relief to which she is properly entitled.

/s/ Katherine Kerns Vesely

Katherine Kerns Vesely

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Counsel for Defendant, Erica Gettis, D.O.

CERTIFICATE OF SERVICE

I hereby certify that on the **6th day of May, 2025**, a copy of the foregoing was emailed to the following:

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